

**Before the
FEDERAL MARITIME COMMISSION**

Docket No. 24-08

**Impact Products, LLC *et al.*, Complainants v. Overseas Container Line Limited
and OOCL (Europe) Limited, Respondents**

JOINT STATUS REPORT AND PROPOSED DISCOVERY SCHEDULE

Pursuant to the Commission’s Initial Order dated February 29, 2024 (“Initial Order”) and 46 C.F.R. § 502.141(h), Complainants Impact Products, LLC and Safety Zone, LLC (“Complainants”) and Respondents Overseas Container Line Limited and OOCL (Europe) Limited, Respondents. (“Respondents” and, collectively with Complainants, the “Parties”), by their respective undersigned counsel, have conferred and submit this joint status report and discovery schedule:

The Parties do not currently anticipate needing depositions or interrogatories in this case in excess of the amounts contemplated by 46 C.F.R. §§ 502.143 (i.e., no more than 20 depositions) and 502.145 (i.e., no more than 50 written interrogatories), respectively. The Parties propose the following discovery schedule:

Event	Deadline
Parties to make initial disclosures	June 14, 2024
Mediation Discussion with CADRS	June 22, 2024
Parties may serve initial written discovery requests	July 3, 2024
Complainant to identify expert witnesses, if any	July 29, 2024
Parties to serve objections and responses to initial written discovery requests	Aug. 5, 2024

Depositions of fact witnesses may begin to be noticed	Aug. 23, 2024
Complainant to serve initial expert reports, if any	Aug. 26, 2024
Respondent to identify rebuttal expert witnesses, if any	Sept. 2, 2024
Expert depositions may begin to be noticed, if any	Sept. 19, 2024
Respondent to serve rebuttal expert reports, if any	Sept. 30, 2024
Last date to serve supplemental written discovery requests	Oct. 1, 2024
Parties to serve objections and responses to supplemental written discovery requests served by September 27, 2024	Oct. 24, 2024
Complete Depositions of Fact and Expert Witnesses	Nov. 4, 2024
Discovery ends	Nov. 4, 2024
Complainants' Opening Brief, Proposed Findings of Fact, and Appendix	December 6, 2024
Respondents' Response Brief, Proposed Findings of Fact, and Appendix	January 15, 2025
Complainants' Reply Brief and Responses to Proposed Findings of Fact	January 29, 2025

Pursuant to 46 C.F.R. Section 502.64(a) and the February 29, 2024 Initial Order, the Parties have reached out to the Consumer Affairs and Dispute Resolution Services (CADRS) via email to schedule a time for a preliminary conference with CADRS.

Dated: June 17, 2024

Respectfully and jointly submitted,

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